

20STCV05566 20STCV05566

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-08

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Case Number: 20STCV05566 Hearing Date: July 8, 2026 Dept: 730

TENTATIVE

The request for default judgment submitted on April 22, 2026, is DENIED for the following reasons:

Plaintiff's operative complaint ("TAC") makes no specific request for damages, failing to put Defendant Lou Brown ("Defendant") on notice as to monetary damages. Pursuant to Code of Civ. Proc. § 580, relief granted pursuant to default judgment, for non-personal injury or wrongful death claims, cannot exceed the amount demanded in the complaint or the amount identified in a punitive damages request. Plaintiff's TAC is not for personally injury or wrongful death claims. Plaintiff prayed for "damages and equitable relief as set forth above." (TAC p. 17 ¶¶ 23-24.) No specific monetary amount was requested. The Court cannot enter judgment of any monetary value based upon the TAC.

While Plaintiff did serve a Statement of Damages, a Statement of Damages is generally only used to supplement personal injury and wrongful death claims. There is no statutory support for Statement of Damages constituting sufficient notice for other claims. Additionally, even if the Court did acknowledge the Statement of Damages as sufficient notice to Defendant, the Statement of Damages was not served until April 22, 2026. (4/22/26 Statement of Damages). Default was entered two years prior, on January 8, 2024. Defendant was not on notice, even improperly, as to the requested damages until two years after default was entered.

Plaintiff requests both interest and costs. However, the TAC does not pray for interest or costs. The Court cannot award interest or costs absent a request within the operative complaint.

In Section 8 of the Civ-100 form, Plaintiff asserted Defendant is not an active military service member as Defendant is estimated to be about 55 years old, making him too old for active military duty. This is an insufficient basis, as already enrolled military service members may continue to serve beyond the age of 55. Plaintiff must provide a reason supported by law or facts to satisfy the Cal. Rules of Court rule 3.1800(a)(5) requirement for declaration of nonmilitary status.

Plaintiff has not dismissed DOE Defendants or Defendant Catamount Properties 2018, LLC, or otherwise applied for severable relief, as required by Cal. Rules of Court rule 3.1800(a)(7).

The OSC re entry of default judgment is continued to the court's next available date in approximately 60 days. No later than 15 days before the new hearing date, Plaintiff is to submit a new default judgment package correcting these defects. Failure to do so may result in the imposition of sanctions, including monetary sanctions and/or dismissal.